

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC HOLDINGS, LLC.,
Plaintiff,

Case No.:

vs.

LINDA FAYE RUSSELL, TRACY RENEE KIRK,
ANY UNKNOWN TENANT(s),
Defendants.

COMPLAINT SEEKING EVICTION, DAMAGES AND OTHER RELIEF

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), LINDA FAYE RUSSELL, TRACY RENEE KIRK and any UNKNOWN TENANT(s), in possession of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of a mobile home park lot tenant and possession of real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida.
3. Defendants, LINDA FAYE RUSSELL and TRACY RENEE KIRK, are the last known registered co-owners of the mobile home located at 900 9th Avenue East, Lot #91, Palmetto, Manatee County, Florida, 34221.
4. Defendant(s), ANY UNKNOWN TENANT(s), may reside on real property at 900 9th Avenue East, Lot #91, Palmetto, Manatee County, Florida, 34221, but if so, does without the consent of the Plaintiff.

5. Plaintiff owns, in fee simple, the real property located at 900 - 9th Avenue East, Palmetto, Florida, 34221, including Lot #91.

6. Plaintiff, as landlord, leased to Defendant, LINDA FAYE RUSSELL, Lot 91, of the above-stated mobile home park at a monthly rental fee of \$624.50, plus monthly late fees in the amount of \$45.00. The Defendant owes lot rent for the months of January through May of 2021 in the sum of \$3,347.50, pursuant to the Rental Agreement.

7. Defendant, LINDA FAYE RUSSELL, is in default of the Rental Agreement with Plaintiff by failure to pay the total sum of \$3,347.50 as of May, 2021.

8. On May 13, 2021, Plaintiff served by posting on Defendant(s) upon LINDA FAYE RUSSELL, TRACY RENEE KIRK and ANY UNKNOWN TENANT(s), a Five-Day Notice of Termination of Tenancy for Non-payment of Rent. A copy of this Notice is attached and marked as Plaintiff's **Exhibit A** evidencing posted notice.

9. On May 13, 2021, Plaintiff also mailed to 900 - 9th Avenue East, Lot #91, Palmetto, Manatee County, Florida 34221, a Five-Day Notice of Termination of Tenancy for Non-payment of Rent to LINDA FAYE RUSSELL, TRACY RENEE KIRK and ANY UNKNOWN TENANT(s). A copy of the returned envelope indicating that the lot is "VACANT" as well as the certified return receipt is attached and marked as Plaintiff's **Exhibit B**.

10. On May 13, 2021, Plaintiff also mailed to 4347 Old Lebanon Dirt Road, Mount Juliet, TN 37122, a Five-Day Notice of Termination of Tenancy for Non-payment of Rent to LINDA FAYE RUSSELL. This is the last known address for LINDA FAYE RUSSELL. A copy of the certified return receipt is attached and marked as Plaintiff's **Exhibit C**.

11. On May 13, 2021, Plaintiff also mailed to 394 Coquina Dr., Ellenton, FL 34222, a Five-Day Notice of Termination of Tenancy for Non-payment of Rent to TRACY RENEE KIRK.

This is the address listed for this Defendant on the Title for the mobile home. A copy of the certified return receipt is attached and marked as Plaintiff's **Exhibit D**.

12. Defendant(s), LINDA FAYE RUSSELL, TRACY RENEE KIRK and ANY UNKNOWN TENANT(s), have failed to make the payment of past due rent, and late fees within five (5) days of delivery of the Notice and continue to refuse to pay the amounts due and owing to Plaintiff.

13. ANY UNKNOWN TENANT(S) may reside or have an interest in Lot #91 of COLONIAL MOBILE MANOR MHC HOLDINGS, LLC, but said resident is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

14. Pursuant to the Rental Agreement and Section 723.068 of Florida Statutes, Plaintiff is entitled to costs and an award of attorney fees.

15. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney fees against Defendant(s), LINDA FAYE RUSSELL, TRACY RENEE KIRK and ANY UNKNOWN TENANT(s), and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

16. This is an action seeking less than \$15,000.00 excluding costs, interest and attorney fees.

17. Plaintiff re-alleges the facts contained within paragraphs 1 through 15 as though fully set forth herein.

18. Defendants, LINDA FAYE RUSSELL, TRACY RENEE KIRK and ANY UNKNOWN TENANT(s) owes the Plaintiff a sum less than \$30,000.00 plus interest, costs and reasonable attorney fees.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, LINDA FAYE RUSSELL, TRACY RENEE KIRK, and ANY UNKNOWN TENANTS for damages, costs and a reasonable attorney's fee.

COUNT III
ACTION TO ENFORCE LANDLORD'S LIEN

19. This is an action seeking to enforce a landlord's lien pursuant to Sections 713.691 and 713.77 of Florida Statutes.

20. The Plaintiff re-alleges the facts contained within paragraphs 1 through 18 and paragraphs 19 through 24 as though fully set forth herein.

21. Defendants, LINDA FAYE RUSSELL and TRACY RENEE KIRK, are the registered co-owners of a double mobile home located on Lot #91 of the property identified as *1971 Unknown Make Unknown Model VIN#: FC24324SL1901B, Title#`0004962585; VIN#: FC24324SL1901A, Title#`0004962584*, leased by the Plaintiff to the Defendant as identified in paragraph 3 of this complaint.

22. Upon the Plaintiff being determined to be entitled to judgment for possession and for damages as set forth in this Complaint, Plaintiff is entitled to a landlord's lien against said mobile home to enforce its judgment against Defendant for unpaid rent, utility bills, late fees, maintenance fees, court costs and a reasonable attorney's fee for the pursuit of this eviction and for related relief.

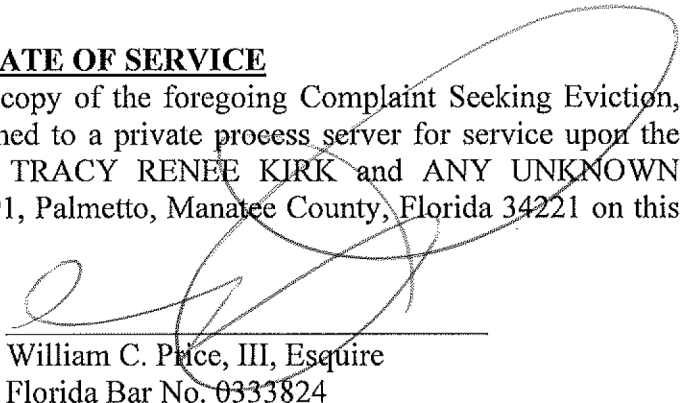
23. The Plaintiff claims entitlement to enforce its lien against said mobile home by judicial sale pursuant to Florida Statute §45.031.

24. The Plaintiff is entitled to credit toward the purchase of said mobile home in the sum representing all of Plaintiff's judgment against the Defendant, LINDA FAYE RUSSELL, TRACY RENEE KIRK and ANY UNKNOWN TENANT(s), all costs of this proceeding and reasonable attorney's fees.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendant(s), LINDA FAYE RUSSELL, TRACY RENEE KIRK and ANY UNKNOWN TENANT(s) at 900 9th Avenue East, Lot #91, Palmetto, Manatee County, Florida 34221 on this 9th day of June, 2021.



William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Pleadings@wcpricelaw.com
Attorney for the Plaintiff